

Ghasita Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 February 2021 · WRIT - C No. 24145 of 2020 · **Writ disposed; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ complaining of the accuracy of an electric bill is disposed of by relegating the consumer to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ghasita Singh filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and two others, complaining of the accuracy of his electric bill. On 8 January 2021 the Court directed him to file a supplementary affidavit enclosing a representation dated 6 June 2020. After a further listing, written instructions of the respondents were taken on record on 23 February 2021. Counsel for the respondents identified the Executive Engineer, Electricity Distribution Division-IIInd, Mandawar, District Bijnor, as the competent authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-accuracy grievance relegated to Executive Engineer

HOLDING

A grievance as to the accuracy of an electric bill is to be taken to the Executive Engineer as the competent authority, and the consumer is relegated to the remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ petition is disposed of on that footing. ¶ 3

PRINCIPLE TAGS

clause-6.5-alternate-remedy Writ on electric-bill accuracy disposed by relegating the petitioner to Clause 6.5 rather than deciding the bill on merits. ¶ 3

billing-objection-to-executive-engineer-under-6.5 Court accepted the respondents' identification of the Executive Engineer, Electricity Distribution Division-IIInd, Mandawar, District Bijnor, as the competent authority for the billing grievance. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACCURACY OR CORRECTNESS OF THE PETITIONER'S ELECTRIC BILL

The Court did not examine the bill on merits. ¶ 3